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Secure Distribution Venture Pvt. Ltd.

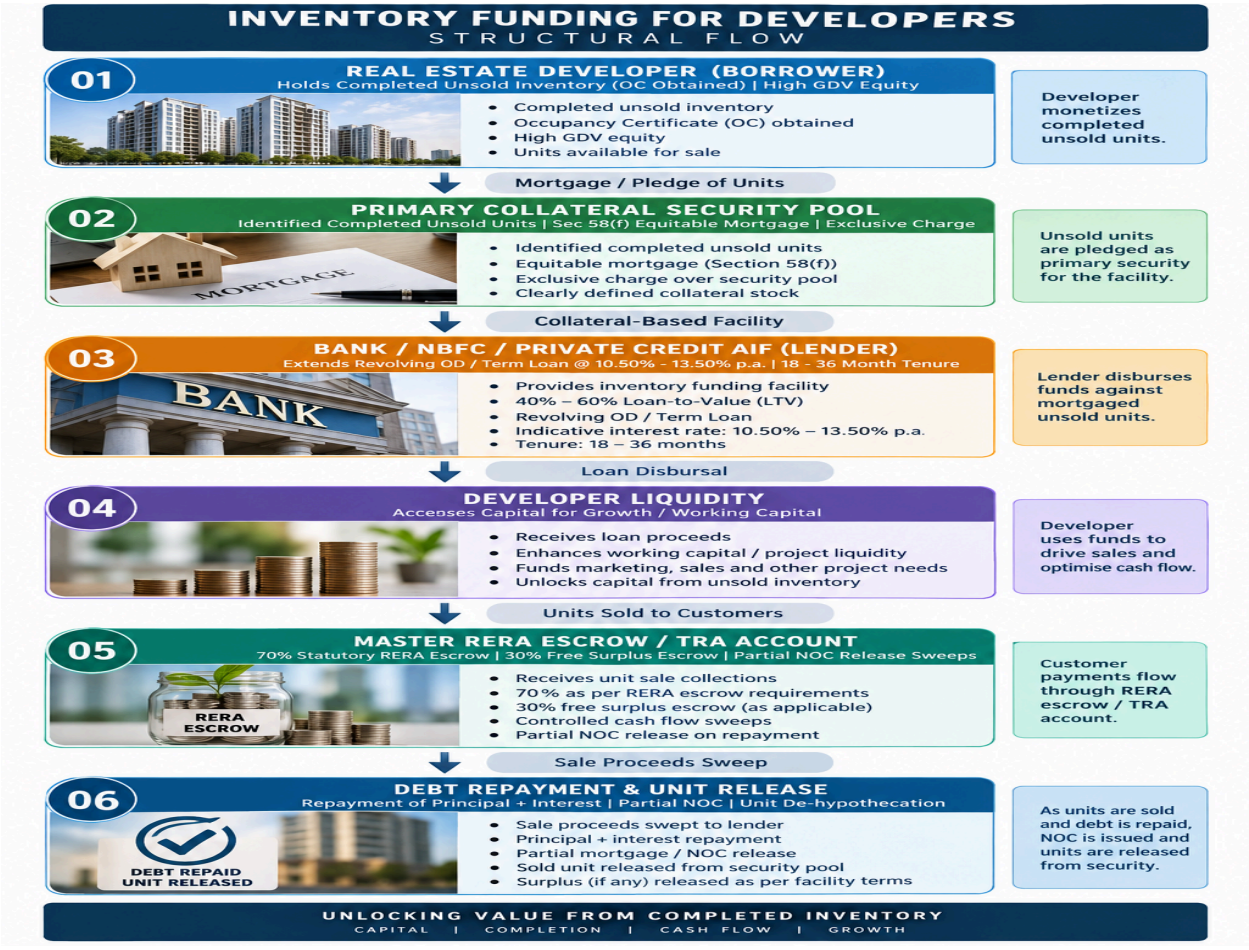
What Is Inventory Funding for Developers ?

Developed by www.loanbazaaronline.com

Executive Summary & Curriculum Blueprint

In the Indian real estate financial ecosystem, real estate developers frequently encounter a profound liquidity bottleneck known as the **"Completed Unsold Inventory Debt Lock."** Following the successful completion of a residential or commercial project—signaled by the receipt of an Occupancy Certificate (OC) or Partial Occupancy Certificate (Part OC)—developers often hold substantial completed, ready-to-move-in inventory. While these completed units represent high Gross Development Value (GDV), traditional construction finance facilities mature upon OC issuance or demand immediate principal amortization. Concurrently, end-user home purchases follow a steady, gradual absorption curve rather than an instantaneous lump-sum monetization.

Inventory Funding for Developers (also referred to as Inventory Overdraft, Ready-to-Move-In Unit Refinancing, or Completed Inventory Mortgage Facility) is a specialized corporate real estate credit product designed to monetize this "static equity." By leveraging completed, unsold residential, commercial, or retail units as primary collateral under Section 58(f) Equitable Mortgage, developers secure immediate liquid capital at attractive Loan-to-Value (LTV) ratios of 40% to 60%. This white paper serves as an exhaustive, institutional-grade reference manual designed to equip financial analysts, corporate treasurers, underwriters, real estate promoters, and investment bankers with an end-to-end understanding of Inventory Funding in India.



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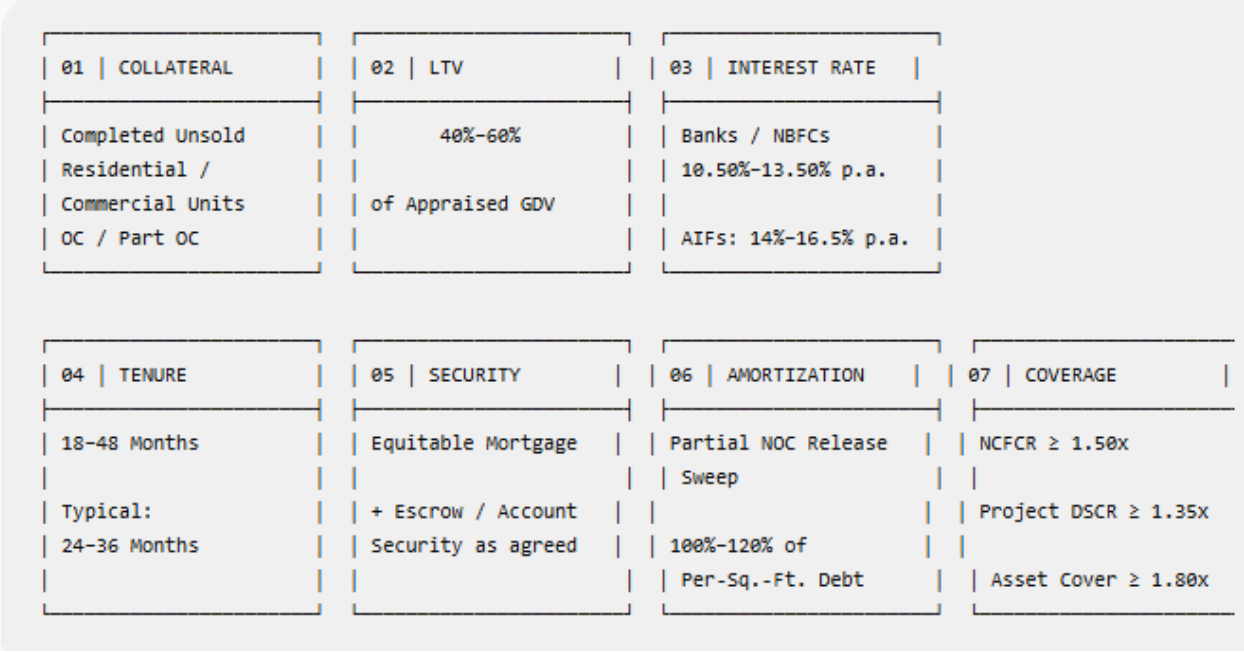
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Module 1: Comprehensive Product Overview & Fundamental Theory

1.1 Defining Inventory Funding for Developers

Inventory Funding for Developers is a structured credit facility extended by Scheduled Commercial Banks, Non-Banking Financial Companies (NBFCs), and Category II Alternative Investment Funds (AIFs) to real estate developers against completed or near-completed unsold inventory. Unlike Construction Finance (which funds active civil construction risk and carries high stage-disbursal oversight), Inventory Funding is an asset-backed refinancing or working capital mechanism.

The primary objective of Inventory Funding is to unlock tied-up capital in finished real estate stock, allowing promoters to: 1. **Refinance Legacy High-Cost Construction Debt:** Replace maturing construction finance loans or high-cost mezzanine debt (bearing interest rates of 16%–22% p.a.) with lower-cost inventory funding (bearing rates of 10.50%–13.50% p.a.). 2. **Fund New Project Land Options & Early Approvals:** Provide immediate liquidity to acquire land parcels, pay municipal FSI premiums, or finance pre-construction approval costs for upcoming developments. 3. **Prevent Distressed Unit Dumping:** Avoid forcing fire-sales or deep discounting of completed units to meet immediate liquidity needs, thereby preserving brand equity and market pricing power. 4. **Bridge Cash Flow Gaps During Slow Sales Periods:** Maintain operational liquidity for corporate overheads, marketing campaigns, and sub-contractor settlements during temporary macroeconomic slowdowns.



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1.2 The Inventory Liquidity Paradox in Indian Real Estate

Real estate development in India is inherently illiquid and capital-intensive. A developer spends 3 to 5 years executing a project, taking on civil construction risk, regulatory compliance (RERA, municipal approvals, environment NOCs), and financial leverage. Upon project completion, the physical risk vanishes—the building stands fully constructed with an Occupancy Certificate (OC) issued by local municipal authorities (e.g., BMC in Mumbai, DDA in Delhi, BBMP in Bengaluru).

However, a financial contradiction emerges: * **The Valuation Peak:** The completed units now command peak market value because buyers no longer face construction delay risk or GST levy (completed units with OC are exempt from the 5% GST applicable to under-construction properties). * **The Liquidity Trough:** Construction loans mature immediately upon OC issuance. Lenders demand full repayment, yet the developer may still hold 20% to 40% of the project's saleable area as unsold inventory. Selling these units organically through retail channels takes 12 to 24 months.

If the developer is forced to liquidate this inventory within 30 to 60 days to repay the construction loan, they must offer 15% to 25% price discounts to bulk buyers or channel partners. This destroys profit margins. Inventory Funding resolves this paradox by bridging the time gap between physical completion and retail sales absorption.

1.3 Legal & Regulatory Foundation

Inventory Funding operates within a strict legal and regulatory matrix in India: * **Section 58(f) of the Transfer of Property Act, 1882:** Governing the creation of an Equitable Mortgage through the deposit of title deeds of the completed unsold units and land undivided share with the lender. * **Real Estate (Regulation and Development) Act, 2016 (RERA):** Section 4(2)(l)(D) mandates that 70% of all customer collections from unit sales must be deposited into a designated bank escrow account. Inventory Funding structures seamlessly integrate with RERA by establishing a Master Escrow Trust and Retention Account (TRA) agreement. * **Section 77 of the Companies Act, 2013:** Mandating the registration of charge on the developer's assets with the Registrar of Companies (ROC) via Form CHG-1 within 30 days of loan execution. * **CERSAI (Central Registry of Securitisation Asset Reconstruction and Security Interest):** Compulsory registration of the mortgage on the CERSAI portal to prevent double-mortgaging or fraudulent re-pledging of completed units. * **GST Exemption on OC Units:** Under the Central Goods and Services Tax (CGST) Act, 2017, sale of ready-to-move-in residential units post-Occupancy Certificate is classified as neither a supply of goods nor a supply of services (Schedule III), making them exempt from 5% GST. This increases buyer demand for inventory funding collateral compared to under-construction stock.

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Module 2: Architectural Mechanics, Structural Design & RERA Escrow Ring-Fencing

2.1 The Revolving vs. Amortizing Loan Architecture

Inventory Funding facilities are structured under two primary borrowing models depending on the developer's cash flow requirements and lender risk appetite:

01 | REVOLVING OVERDRAFT (OD) LINE	02 | STRUCTURED TERM LOAN
DRAWING POWER	DISBURSAL
Monthly DP based on Unsold GDV	Fixed Upfront Disbursal
INTEREST SERVICING	INTEREST SERVICING
Monthly on Utilized Amount	Monthly on Total Principal
PRINCIPAL REPAYMENT	PRINCIPAL REPAYMENT
Dynamic Sweep on Unit Sales	Fixed Amortization Schedule
FLEXIBILITY	FLEXIBILITY
HIGH	MEDIUM
Draw / Repay as Required	Structured Tranches
TARGET BORROWER	TARGET BORROWER
Large / Multi-Project Developers	Single-Project SPVs
TENURE	TENURE
12–24 Months	24–48 Months
Annual Renewal	Fixed Tenure

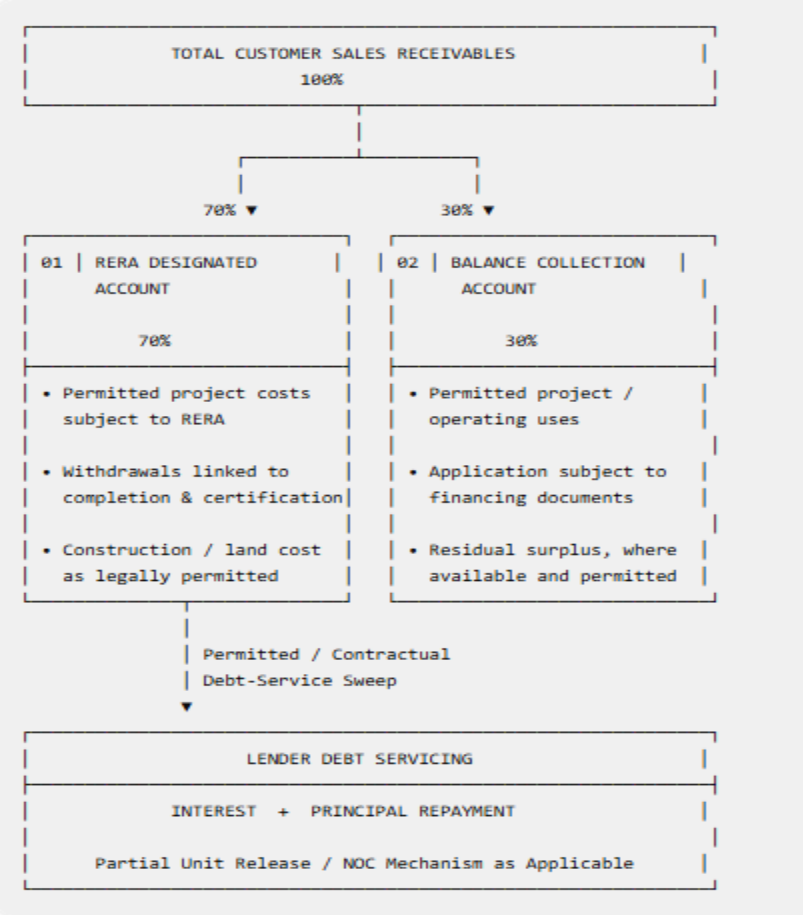
A. Revolving Inventory Overdraft (OD) Line

Under the Revolving OD model, the lender sanctions a maximum credit limit (e.g., ₹50 Crores) against a pool of completed unsold units valued at ₹100 Crores (50% LTV). The developer can draw down funds up to the Drawing Power (DP) calculated on a monthly basis. As completed units are sold and sales proceeds are deposited into the escrow account, the DP is recalculated. The developer pays interest only on the daily utilized balance, providing extreme cash flow efficiency.

B. Amortizing Inventory Term Loan

Under the Amortizing Term Loan model, the lender disburses a lump-sum amount (e.g., ₹50 Crores) at sanction. The loan features an initial interest-only moratorium (e.g., 12 months) followed by structured quarterly principal repayments over the remaining tenure (e.g., 24 months). In addition to scheduled amortization, the facility incorporates a mandatory "Sales Sweep" mechanism where a fixed percentage (e.g., 80%–100%) of all incoming sales receivables from pledged units is automatically applied toward principal reduction.

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2.2 The Partial NOC & Release Cover Rate Protocol

The most critical operational component of Inventory Funding is the **Partial No Objection Certificate (NOC) Release Mechanism**. Since the collateral pool consists of individual residential or commercial units, the developer must sell these units to end-users over time. However, an end-user (and their home loan bank) will not purchase a unit unless it is un-mortgaged and free of all encumbrances.

To facilitate retail sales without compromising lender security, the facility agreement specifies a **Release Cover Rate (RCR)** or **Per-Square-Foot Debt Allocation**:

$$\text{extPer}-\text{Sq}-\text{FtDebtAllocation} = \text{racextTotalSanctionedLoanAmountextTotalPledgedSaleableCarpet AreaSq.Ft.}$$

$$\textbf{extUnitReleaseThreshold} = \textbf{extUnitCarpetAreaSq.Ft.imesextPer}-\textbf{Sq}-\textbf{FtDebtAllocationimesextReleaseCoverMultiplier100\%}-\textbf{120\%}$$

Step-by-Step NOC Release Workflow:

1. **Unit Sale Agreement:** The developer executes an Agreement for Sale with a retail buyer for a pledged unit (e.g., Unit 1402, 1,000 sq. ft. carpet area, sold for ₹1.50 Crores).

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2. **Release Price Calculation:** If the per-sq-ft debt allocation is ₹4,000/sq. ft. and the Release Cover Multiplier is 110%, the developer must deposit:

$$extRequiredNOCPayment = 1,000extsq.ft.imes₹4,000imes1.10 = ₹44,00,000$$

3. **Escrow Deposit:** The buyer or their home loan bank remits ₹44.00 Lakhs directly into the designated Lender Escrow Account.
4. **NOC Issuance:** Upon verification of receipt, the lender issues a unit-specific Partial NOC releasing Unit 1402 from the mortgage charge.
5. **Mortgage Adjustment:** The lender updates the remaining pledged inventory schedule. The Release Cover Multiplier of 110% ensures that as units are sold, the LTV on the remaining unsold inventory progressively decreases, enhancing lender security over time.

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Module 3: Comparative Capital Architecture Matrix

3.1 Positioning Inventory Funding in the Real Estate Capital Stack

Real estate developers utilize a variety of debt and equity instruments across a project's lifecycle. Understanding where Inventory Funding fits relative to other financial products is essential for optimal corporate capital structuring:

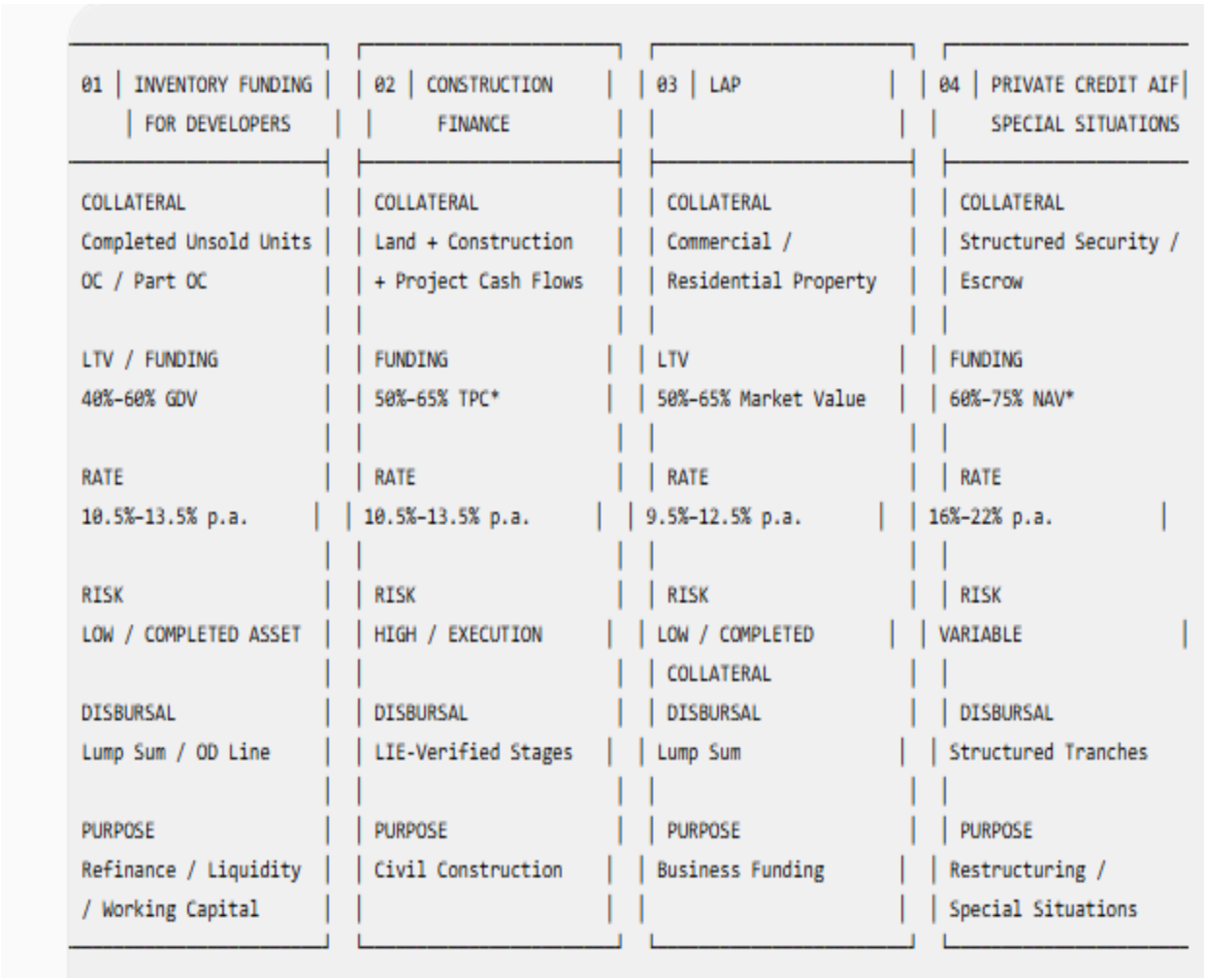
01 LAND	→	02 APPROVALS	→	03 CONSTRUCTION	→	04 COMPLETION	→	05 OC / INVENTORY
Equity / Land Loan	→	Mezzanine AIF	→	Construction Finance	→	Last-Mile Funding	→	Inventory Funding
Very High Risk		High Risk		Medium Risk		Medium-Low Risk		Low Risk
18–24%		16–20%		10.5–13.5%		12–15%		10.5–13.5%

3.2 Deep Comparison: Inventory Funding vs. Alternative Financial Products

Key Takeaways from Comparison:

1. **Vs. Construction Finance:** CF is restricted to paying civil contractors and material suppliers for active construction. Inventory Funding provides unencumbered liquidity that can be deployed across the developer's corporate group for new land acquisition, pre-approval costs, or inter-company working capital.
2. **Vs. Loan Against Property (LAP):** Traditional LAP is underwritten based on personal income/cash flows of the promoter and provides a long-term amortizing loan (7–15 years) without a retail sales NOC release structure. Inventory Funding is a specialized corporate real estate product with built-in Partial NOC mechanics tailored specifically for merchant unit sales.
3. **Vs. Private Credit AIF Debt:** Private Credit AIFs offer high flexibility but charge prohibitive interest rates (16%–22% p.a.). Inventory Funding from Banks or NBFCs delivers institutional capital at 10.50%–13.50% p.a., saving developers 550 to 850 basis points in annual interest outlay.

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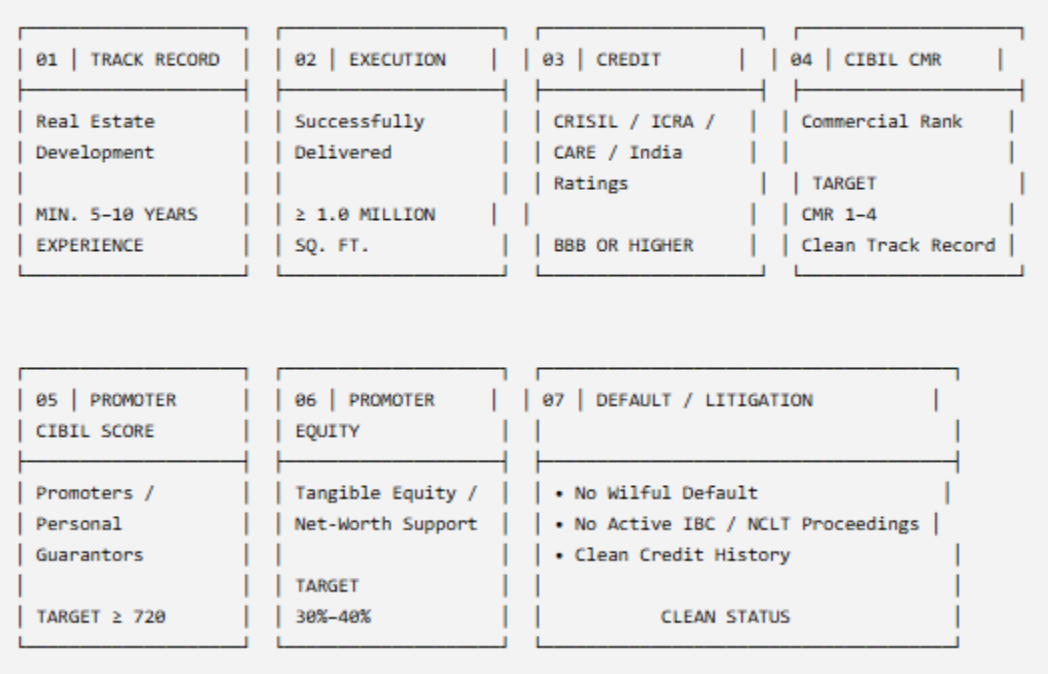


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Module 4: Comprehensive Eligibility Criteria & Institutional Credit Assessment

4.1 Developer Entity & Promoter Qualification

Lenders evaluate Inventory Funding applications through a rigorous institutional credit underwriting framework. Key promoter and corporate entity eligibility criteria include:



4.2 Project & Collateral Asset Qualification

The collateral pool of completed unsold units must satisfy strict physical, legal, and financial parameters: 1. **Occupancy Certificate (OC) / Part OC Status:** The project must have received a valid Occupancy Certificate or Completion Certificate from the municipal planning authority (e.g., BMC, DDA, HUDA, CMDA, DTCP). In cases where Part OC is issued, the pledged units must be located entirely within the OC-cleared wings or towers. 2. **RERA Active Compliance:** The project must be fully compliant with RERA regulations, with up-to-date quarterly disclosures on the state RERA portal. 3. **Clear & Marketable Title:** 30-year unencumbered title search report (TSR) verified by the lender’s empanelled legal counsel. If the land was previously mortgaged to a construction finance lender, a formal NOC / Re-conveyance Deed or Debt Cession Agreement must be executed. 4. **Valuation Independence:** Valuation of the completed unsold inventory must be conducted independently by at least two IBBI-registered (Insolvency and Bankruptcy Board of India) real estate valuers. The lender applies the lower of the two appraised Gross Development Values (GDV).

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4.3 Key Financial Risk Metrics & Sizing Ratios

Underwriters utilize quantitative financial ratios to size the Inventory Funding limit and ensure debt service sustainability:

A. Gross Development Value Loan-to-Value (GDV-LTV) Ratio

extGDV−LTVRatio=racextSanctionedInventoryLoanAmountextAppraisedMarketValueofPledgedUnsoldUnits50.0%

Benchmark: Standard LTV is capped at 40% to 50% for residential inventory and 35% to 45% for commercial/retail inventory to cushion against market price fluctuations.

B. Net Cash Flow Cover Ratio (NCFCR)

extNCFCR=racextPresentValueofExpectedReceivablesfromPledgedInventoryextTotalDebtServiceOutflowPrincipal+Interest1.50x

Benchmark: Minimum NCFCR requirement is $1.50x$, ensuring that expected sales proceeds comfortably cover all debt service obligations even if sales velocity drops by 33%.

C. Debt Service Coverage Ratio (DSCR)

extProjectDSCR=racextAnnualOperatingCashInflowsfromUnitSalesextAnnualInterest+PrincipalAmortizationOutflow1.35x

Benchmark: Minimum Project DSCR of $1.35x - 1.50x$ across the facility tenure.

D. Asset Coverage Ratio (ACR)

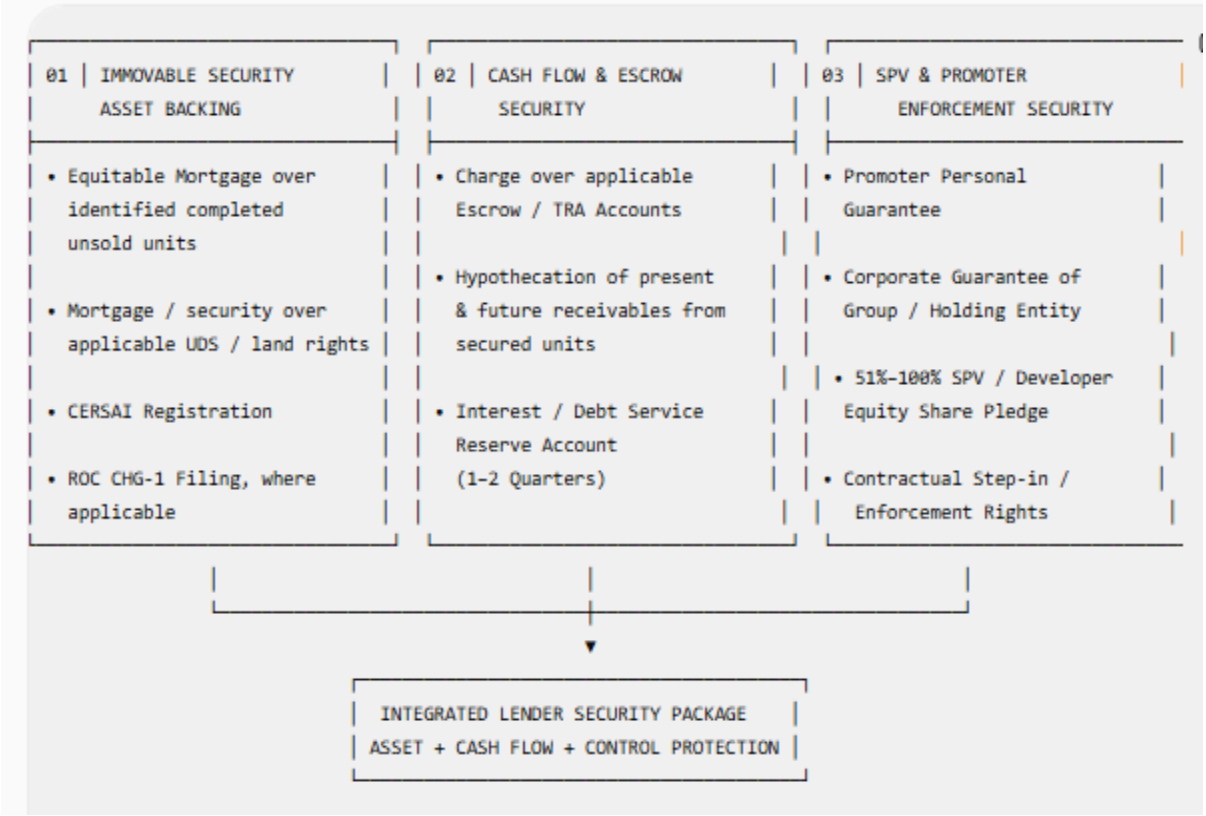
extACR=racextAppraisedLiquidationValueofPledgedRealEstateCollateralextTotalOutstandingLoanPrincipal1.80x−2.00x

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Module 5: Security Architecture, Documentation & Legal Covenants

5.1 Comprehensive Security Package

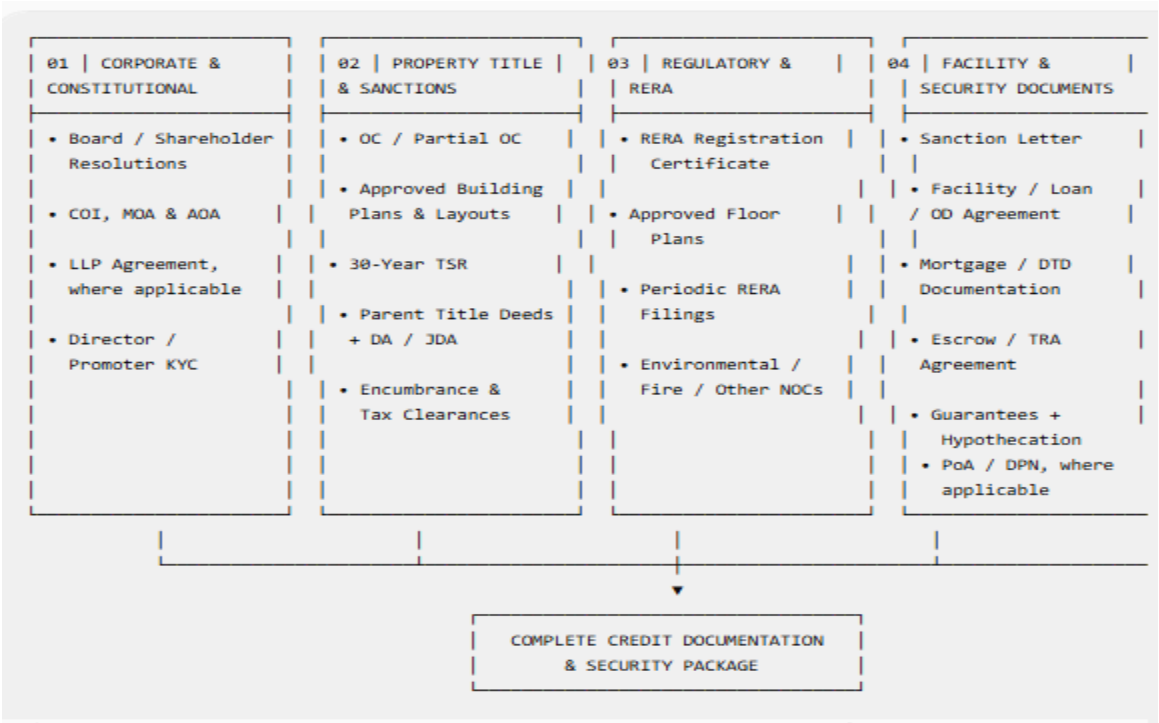
To secure an Inventory Funding facility, lenders establish a robust multi-tiered security package encompassing physical immovable assets, cash flow escrows, corporate guarantees, and power-of-attorney enforcement rights:



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5.2 Mandatory Documentation Checklist

A complete, institutional Inventory Funding documentation docket requires the following statutory, legal, and financial instruments:



5.3 Key Legal Covenants & Negative Covenants

Facility agreements enforce strict affirmative and negative covenants to preserve collateral value and ensure orderly debt servicing: 1. **Minimum Collateral Cover Maintenance:** The developer must maintain a minimum Asset Coverage Ratio (e.g., 2.00x) throughout the loan tenure. If unit sales cause the collateral value to fall below the threshold without corresponding debt reduction, the developer must pledge additional completed units or make a cash DP reduction payment within 15 days. 2. **Mandatory Escrow Routing:** 100% of all sales proceeds from pledged units must be deposited directly into the designated RERA Master Escrow Account. Any routing of customer funds to outside accounts constitutes an Event of Default and actionable breach of trust. 3. **No Secondary Encumbrance:** The developer shall not create any secondary charge, lien, or pledge over the pledged units or project land without prior written consent from the lender. 4. **Price Protection Floor:** Units cannot be sold below a pre-agreed minimum per-sq-ft benchmark price (e.g., ₹12,000/sq. ft. carpet area) to prevent under-value sales that erode lender security cover. 5. **Promoter Equity Lock-In:** Promoters must maintain 100% ownership and voting control of the SPV throughout the facility tenure.

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Module 6: Indicative Tenure, Pricing Mechanics, Ind AS Accounting & Tax Shields

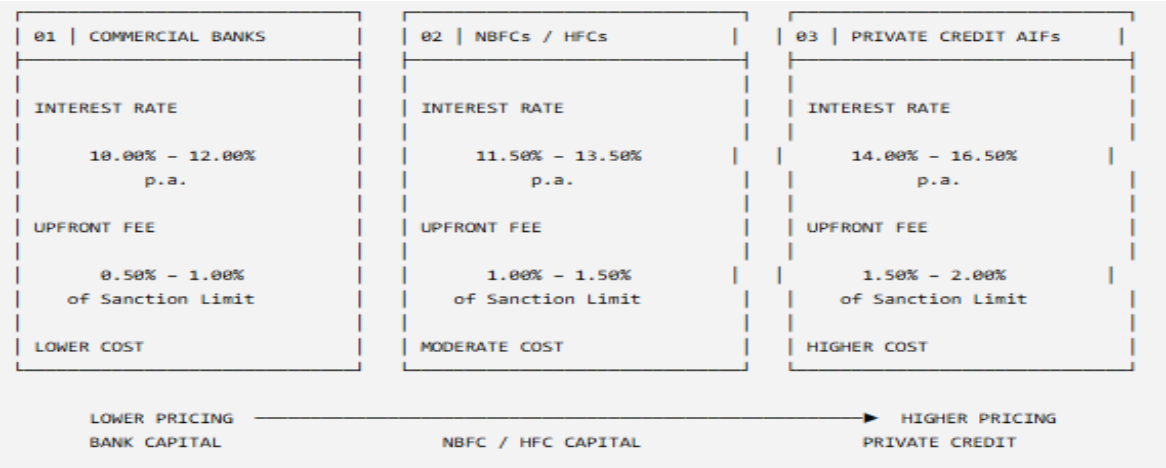
6.1 Indicative Tenure & Moratorium Structures

- **Facility Tenure Range:** 18 Months to 48 Months (typically 24 to 36 months).
- **Moratorium / Interest-Only Window:** 6 Months to 18 Months. During this window, the developer services interest on a monthly basis while principal is retained to support sales velocity.
- **Amortization Structure:** Post-moratorium, principal is repaid through equal quarterly installments or dynamic Partial NOC sales sweeps (110% Release Cover Rate), whichever results in faster debt reduction.

6.2 Commercial Pricing Mechanics & Spread Sizing

Inventory Funding interest rates are priced as a floating spread over the lender's internal benchmark rate (e.g., Repo Rate / EBLR for Banks, or Base Lending Rate for NBFCs):

extFinalInterestRate=extLenderBenchmarkRatee.g.,EBLR@6.50%+extCreditRiskSpreade.g.,4.50%=11.00%extp.a.



6.3 Ind AS Borrowing Cost Accounting & Income Tax Shields

A. Ind AS 23 (Borrowing Costs) Accounting

Under Indian Accounting Standard (Ind AS) 23, borrowing costs directly attributable to the acquisition, construction, or production of a "qualifying asset" are capitalized as part of the asset's cost. * **Pre-OC Phase:** During active construction, interest costs are capitalized into Work-in-Progress (WIP) inventory. * **Post-OC Phase (Inventory Funding Stage):** Once the Occupancy Certificate is obtained, the asset ceases to be a qualifying under-construction asset. Consequently, borrowing costs incurred on Inventory Funding **can no longer be capitalized** into inventory costs. Instead, interest expenses must be charged directly to the Profit & Loss Statement (P&L) as a finance cost during the period incurred.

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B. Section 36(1)(iii) Income Tax Shield

Under Section 36(1)(iii) of the Income Tax Act, 1961, the interest paid on capital borrowed for the purpose of business is 100% tax-deductible as a revenue expenditure against business income.

extPost−TaxInterestCost=extPre−TaxInterestCostimes1−extEffectiveCorporateTaxRate

For an Indian corporate developer taxed at the base rate of 22% plus applicable surcharge (10%) and cess (4%) under Section 115BAA (total effective corporate tax rate = **25.168%**), an 11.00% p.a. pre-tax interest rate delivers a significant tax shield:

$$extPost - TaxEffectiveBorrowingYield = 11.00\%imes(1 - 0.25168) = 8.23\%extp.a.$$

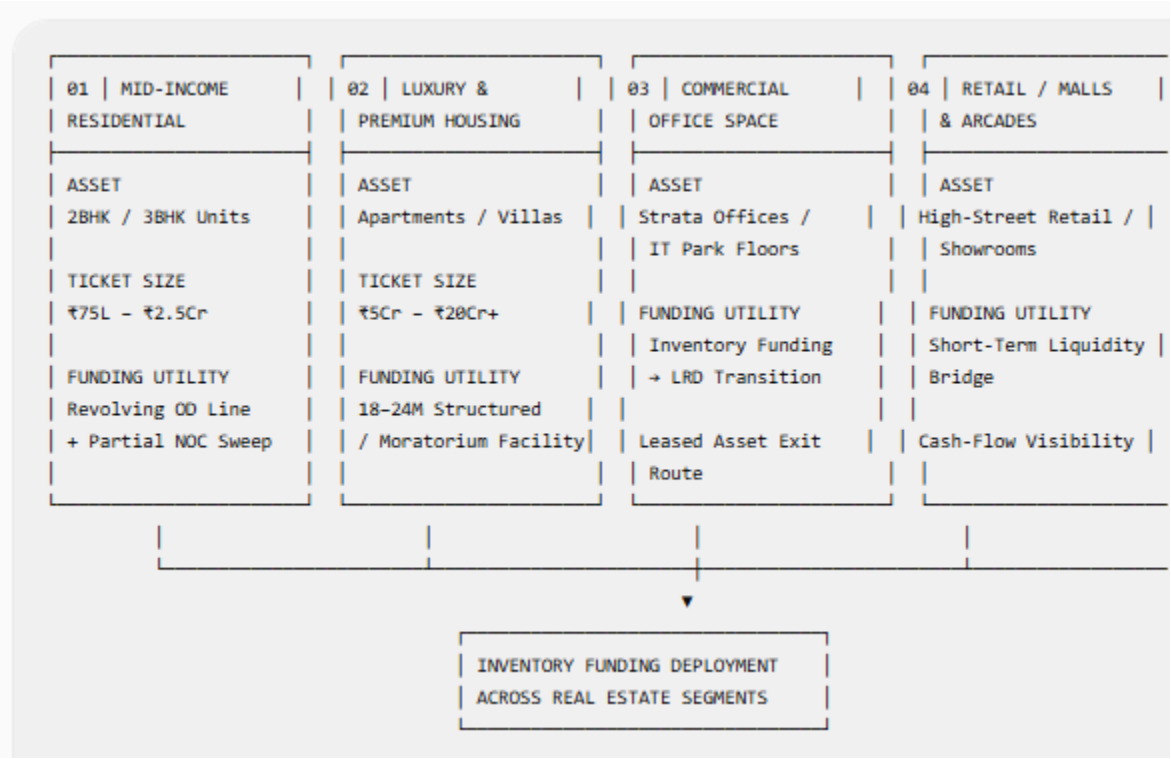
This **277 bps tax shield reduction** makes Inventory Funding one of the most cost-effective capital instruments available to corporate real estate developers in India.

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Module 7: Suitable Industries, Business Profiles & Market Alignment

7.1 Target Developer Profiles & Real Estate Segments

Inventory Funding is highly versatile across urban real estate sub-sectors in India. The following table highlights market fit and deployment dynamics:



7.2 Market Scale & Macro Credit Demand

Commercial credit data from the Reserve Bank of India (RBI) and credit bureau reports (CRIF High Mark / SIDBI MSME Pulse) indicate that commercial real estate and construction-related borrowing represents a significant share of institutional credit in India. Retail and Wholesale Traders, together with Real Estate Builders, represent over 44% of total active commercial borrowers in the ₹10 Lakh to ₹2 Crore credit segment.

Furthermore, major public sector institutions like the State Bank of India (SBI) operate extensive digital credit platforms—such as e-DFS (Electronic Dealer Financing Scheme) managing over ₹49,261 Crores and e-VFS (Vendor Financing Scheme) managing ₹28,092 Crores—demonstrating the massive institutional infrastructure supporting structured inventory and trade financing in India.

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Module 8: Key Advantages, Strategic Limitations & Risk Mitigation Strategies

8.1 Primary Advantages for Real Estate Developers

1. **Unlocking Static Capital Without Fire-Sales:** Releases 40% to 60% of the locked-up market value of completed inventory immediately, eliminating the need to offer 15%–25% bulk discounts to private investors.
2. **Substantial Reduction in Cost of Capital:** Slashes borrowing costs from 16%–22% p.a. (Mezzanine/AIF debt) down to 10.50%–13.50% p.a. (Bank/NBFC Inventory Funding), saving 550 to 850 bps annually.
3. **Group Working Capital & Growth Deployment:** Funds released from Inventory Funding are not restricted to civil construction on the pledged site; they can be deployed across the corporate group for new land acquisition, municipal approval fees, or joint venture deposits.
4. **GST Advantage on OC Units:** Completed units with Occupancy Certificates carry zero GST (saving 5% for homebuyers), driving higher organic sales conversion rates compared to under-construction stock.
5. **Tax Efficiency:** Interest paid post-OC is 100% tax-deductible as a revenue business expense under Section 36(1)(iii), delivering an effective post-tax yield of ~8.23% p.a.

8.2 Strategic Limitations & Downside Risks

1. **Sales Absorption Risk:** If real estate market conditions deteriorate and unit sales stall completely, the developer faces quarterly principal amortization or DP reduction demands without incoming sales cash flows.
2. **Strict RERA Escrow Sweeps:** Mandatory 100% routing of customer collections into the Escrow TRA account restricts promoter access to unencumbered cash until partial NOC release thresholds are satisfied.
3. **Prepayment Penalties & Minimum Lock-In:** Certain NBFC and AIF lenders enforce a 12 to 18-month minimum interest lock-in or 2%–3% prepayment penalty if the loan is foreclosed early through bulk institutional buyers.
4. **Refinancing Risk:** If the loan matures at the end of 36 months and unsold units remain, the developer must seek a facility extension or secondary refinancing line.

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Module 9: Comprehensive Real-World Case Study (Indian Rupee Models)

9.1 Case Profile: Mumbai Landmark Developers Pvt. Ltd. (Project "Grand Horizon Suites")

- **Developer Profile:** Mid-tier corporate developer operating in the Mumbai Metropolitan Region (MMR). Corporate Credit Rating: CRISIL BBB+; CIBIL CMR: CMR 2.
- **Project Status:** "Grand Horizon Suites" (Tower A & B), a premium residential project in Kanjurmarg West, Mumbai.
- **Completion Status:** Received 100% Full Occupancy Certificate (OC) from BMC.
- **Inventory Overview:**
  - Total Units Built: 200 Residential Apartments.
  - Sold Units (Pre-OC): 170 Apartments (Delivered to buyers; construction loan partially repaid).
  - **Completed Unsold Inventory:** 30 Luxury 3BHK Apartments (Average Carpet Area = 1,200 sq. ft. per flat; Total Carpet Area = 36,000 sq. ft.).
  - Appraised Market Value (GDV): ₹22,222 per sq. ft. carpet area.
  - **Gross Development Value (GDV) of Unsold Inventory:** $36,000 ext{sq. ft.} imes ₹22,222 = ₹80,00,00,000 ext{(₹80.00 Crores)}$.

9.2 The Developer's Liquidity Problem

The legacy construction finance lender (a private credit fund) holds a maturing loan balance of **₹35.00 Crores** bearing an interest rate of **17.50% p.a.** The loan matures in 30 days. The developer requires ₹35.00 Crores to satisfy the legacy lender and needs an additional **₹5.00 Crores** of working capital to pay initial land options for a new society redevelopment tender in Chembur, Mumbai. Total capital required = **₹40.00 Crores**.

The developer evaluates two strategic options:

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9.3 Detailed Financial Modeling & INR Step-by-Step Calculations

Pathway A: Distressed Fire-Sale / Mezzanine Financing

To raise ₹40.00 Crores immediately without inventory funding, the developer must either sell 20 units to an underwriting investor at a 20% bulk discount (selling at ₹17,778/sq. ft. instead of market rate ₹22,222/sq. ft.) or extend the mezzanine debt at **18.00% p.a.**. * **Pre-Tax Annual Interest Expense:**

$$extPre - TaxInterest = ₹40,00,00,000 imes 18.00\% = ₹7,20,00,000 ext/year (₹7.20 Crores)$$

* **Cumulative 3-Year Interest Outflow (Pre-Tax):**

$$ext3 - YearInterest = ₹7.20 extCroresimes 3 = ₹21,60,00,000 ext(₹21.60 Crores)$$

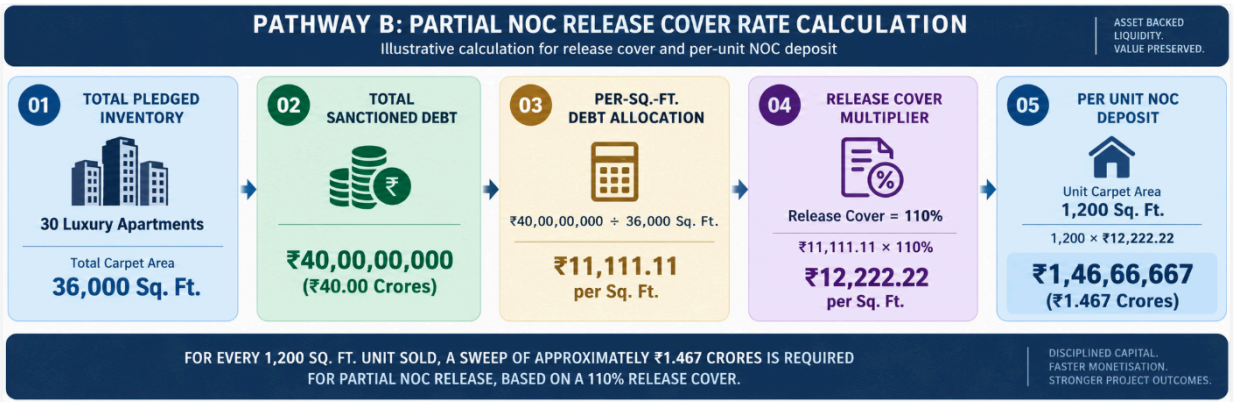
* **Post-Tax Interest Outflow (after Section 36(1)(iii) Tax Shield @ 25.168%):**

ext3−YearNetPost−TaxInterest=₹21.60extCroresimes1−0.25168=₹16,16,37,120ext₹16.16Crores

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Pathway B: Structured Inventory Funding Facility

The developer secures a **Structured Inventory Term Loan of ₹40.00 Crores** from a Scheduled Commercial Bank against the 30 unsold units valued at ₹80.00 Crores (exact **50.0% LTV**). * **Facility Parameters:** * Sanctioned Limit: **₹40.00 Crores** * Interest Rate: **11.00% p.a.** (floating over EBLR) * Upfront Processing Fee: **0.75%** = $₹40.00 extCrores imes 0.75\% = ₹30,00,000 ext(₹30.00 Lakhs)$ * Tenure: **36 Months (3 Years)** with 12 months interest-only moratorium. * Partial NOC Release Cover Rate: **110%** of per-sq-ft debt allocation.



- **Pre-Tax Annual Interest Expense (Year 1):**

$ext Pre - Tax Interest = ₹40,00,00,000 imes 11.00\% = ₹4,40,00,000 ext/year (₹4.40 Crores)$

- **Direct Pre-Tax Annual Savings vs Pathway A:**

extAnnualPre−TaxInterestSavings=₹7.20extCrores−₹4.40extCrores=₹2,80,00,000ext/year₹2.80 Crores

- **Cumulative 3-Year Interest Outflow (Pre-Tax):**

$ext 3 - Year Interest Outflow = ₹4.40 ext Crores imes 3 = ₹13,20,00,000 ext(₹13.20 Crores)$

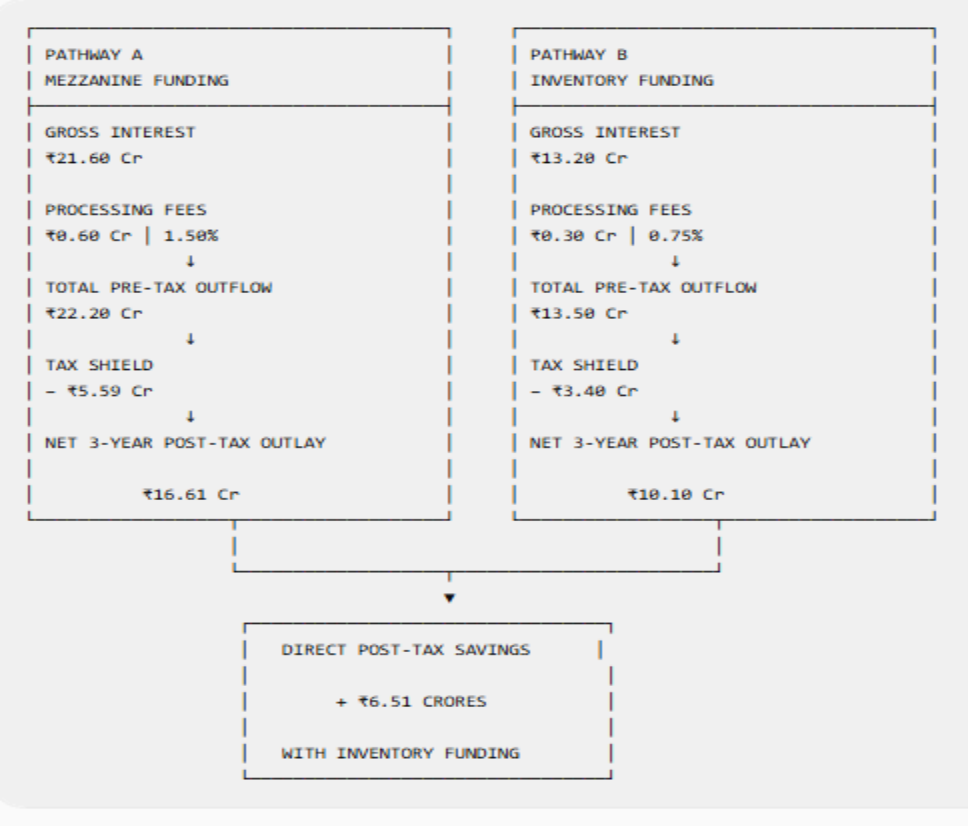
- **Section 36(1)(iii) Tax Shield Deduction (@ 25.168% Corporate Tax Rate):**

$ext Tax Shield Benefit = ₹13.20 ext Crores imes 25.168\% = ₹3,32,21,760 ext(₹3.32 Crores)$

- **Net 3-Year Post-Tax Interest Cost:**

extNetPost−TaxInterestOutflow=₹13.20extCrores−₹3.32extCrores=₹9,87,78,240ext₹9.88Crores

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Parallel Reinvestment Income & Total Wealth Surplus:

By choosing Pathway B (Inventory Funding), the developer avoids fire-selling units at a ₹16.00 Crore bulk discount and saves **₹6.51 Crores in post-tax financing costs**. Furthermore, by using ₹5.00 Crores of the inventory funding proceeds to secure the Chembur redevelopment land option, the developer earns an estimated **16.00% p.a. Return on Capital Employed (ROCE)** on that project over 3 years:

$$\text{ReinvestmentROCEIncome} = ₹5,00,00,000 \times 16.00\% \times 3 = ₹2,40,00,000 \approx ₹2.40 \text{ Crores}$$

$$\text{Post-TaxROCEIncome@25.168\%Tax} = ₹2.40 \text{ Cr} \times 1 - 0.25168 = ₹1,79,59,680 \approx ₹1.80 \text{ Cr}$$

$$\text{TotalNetFinancialWealthSurplus} = \text{DirectPost-TaxSavings} ₹6.51\text{Cr} + \text{ReinvestmentIncome} ₹1.80\text{Cr} = +₹8,30,63,520 \approx +₹8.31 \text{ CRORES}$$

9.4 Strategic Case Conclusion

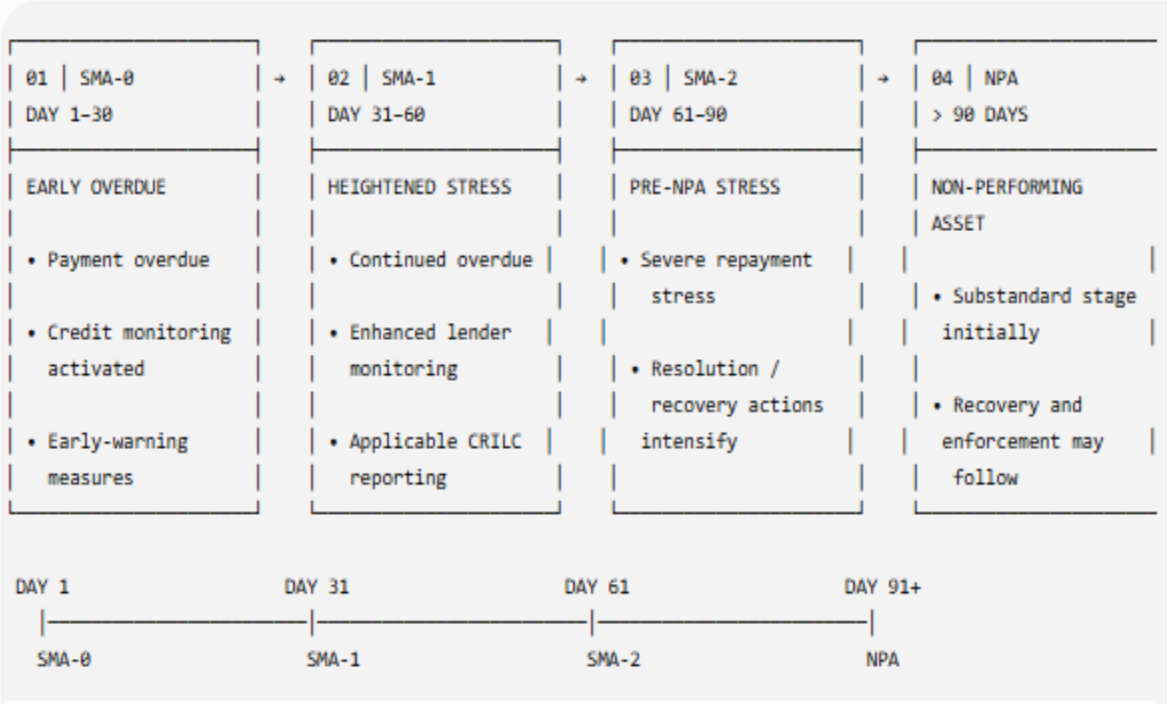
By executing a **Structured Inventory Funding Facility**, Mumbai Landmark Developers Pvt. Ltd.: 1. Fully refinanced its maturing ₹35.00 Crore high-cost legacy debt without default. 2. Released ₹5.00 Crores of fresh working capital to secure a high-margin redevelopment project. 3. Preserved its brand value by selling luxury units at full GDV (₹22,222/sq. ft.) through organic retail channels. 4. Generated a total **Net Strategic Financial Wealth Surplus of ₹8.31 Crores** over 3 years.

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Module 10: Regulatory Compliance, RBI IRACP Norms & Default Framework

10.1 RBI Income Recognition, Asset Classification and Provisioning (IRACP) Norms

Inventory Funding facilities extended by Commercial Banks and NBFCs are strictly governed by the Reserve Bank of India (RBI) Prudential Norms on Income Recognition, Asset Classification and Provisioning (IRACP) pertaining to Advances:



Key IRACP Rules for Overdraft & Term Loan Facilities:

1. **Revolving Overdraft "Out of Order" Status:** An Inventory Overdraft facility is classified as "Out of Order" (and subsequently NPA) if the outstanding balance remains continuously in excess of the sanctioned Drawing Power (DP) for 90 days, or if customer sales deposits into the account are insufficient to cover the monthly interest debited over a 90-day period.
2. **Re-structuring Restrictions:** Any extension of the facility tenure or modification of amortization schedules due to financial distress triggers a downgrade in asset classification to NPA, requiring a minimum 15% provision under RBI's Prudential Framework for Resolution of Stressed Assets.

10.2 Statutory Enforcement Mechanisms

In the event of an un-cured Event of Default (e.g., non-payment of interest for >90 days or diversion of escrow sales proceeds), lenders enforce security through statutory legal channels: *

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SARFAESI Act, 2002 (Section 13/14): Issuance of a 60-day Demand Notice under Section 13(2). Upon expiry, the lender files an application under Section 14 before the District Magistrate / Chief Metropolitan Magistrate (CMM) to take physical possession of the mortgaged completed unsold units and sell them via public auction. * **Negotiable Instruments Act, 1881 (Section 138):** Criminal prosecution for dishonor of security cheques or post-dated cheques (PDCs) deposited by the developer. * **Payment and Settlement Systems Act, 2007 (Section 25):** Criminal liability for dishonor or cancellation of electronic NACH / auto-debit mandates. * **Insolvency and Bankruptcy Code, 2016 (IBC - Section 7):** Filing for Corporate Insolvency Resolution Process (CIRP) before the National Company Law Tribunal (NCLT) as a Financial Creditor.

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Module 11: Professional Certification Examination & Detailed Rationales

This section contains 10 scenario-based examination questions designed to test comprehensive mastery of Inventory Funding for Developers. Each question includes the correct answer, statutory references, and mathematical rationales

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PROFESSIONAL CERTIFICATION EXAMINATION (10 QUESTIONS)
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Question 1: Collateral Valuation & Loan Sizing

A developer holds 20 completed unsold residential units with a valid Occupancy Certificate (OC). Independent Appraiser A values the inventory at ₹50 Crores, while Appraiser B values the inventory at ₹46 Crores. If the lender's credit policy mandates a maximum Gross Development Value Loan-to-Value (GDV-LTV) of 50%, what is the maximum permissible Inventory Funding limit? * A) ₹25.00 Crores * B) ₹23.00 Crores * C) ₹24.00 Crores * D) ₹20.00 Crores

Correct Answer: B) ₹23.00 Crores *Rationale:* Institutional credit policy dictates that when two independent valuations are obtained, the lender must adopt the lower conservative appraised market value to mitigate downside pricing risk.

$$extAdoptedMarketValue = min(₹50extCr, ₹46extCr) = ₹46.00extCrores$$

$$extMaximumLoanLimit = ₹46.00extCroresimes50.0\% = ₹23.00extCrores$$

Question 2: Partial NOC Release Cover Rate Calculation

A developer secures an Inventory Loan of ₹30 Crores against 30,000 sq. ft. of pledged carpet area. The facility agreement specifies a Per-Sq-Ft Debt Allocation based on total carpet area and a Partial NOC Release Cover Multiplier of 115%. If a buyer purchases a 1,500 sq. ft. apartment, what exact amount must be deposited into the Lender Escrow Account to obtain a Partial NOC? * A) ₹15.00 Lakhs * B) ₹17.25 Lakhs * C) ₹1,72,50,000 (₹1.725 Crores) * D) ₹1,50,00,000 (₹1.500 Crores)

Correct Answer: C) ₹1,72,50,000 (₹1.725 Crores) *Rationale:*

extPer−Sq−FtDebtAllocation=rac₹30,00,00,00030,000extsq.ft.=₹10,000ext/sq.ft.

extRequiredUnitDebtAllocation=1,500extsq.ft.imes₹10,000=₹1,50,00,000ext₹1.50Crores

extRequiredNOCEscrowDeposit=₹1.50extCroresimes115.0%=₹1,72,50,000ext₹1.725Crores

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Question 3: Ind AS 23 Accounting Treatment

A developer incurs ₹2.50 Crores in interest expenses on an Inventory Funding facility during FY2025-26. The underlying residential units received their Occupancy Certificate (OC) six months prior to the start of the financial year. How should this interest expense be treated under Ind AS 23? * A) Capitalized into the Work-in-Progress (WIP) inventory cost. * B) Expensed directly to the Profit & Loss Statement (P&L) as a finance cost. * C) Deferred and amortized over a 10-year period. * D) Adjusted against the Securities Premium Reserve in Balance Sheet.

Correct Answer: B) Expensed directly to the Profit & Loss Statement (P&L) as a finance cost. *Rationale:* Under Ind AS 23, borrowing costs can only be capitalized if they are directly attributable to a "qualifying asset" under active construction. Once an Occupancy Certificate (OC) is issued, the asset ceases to be under construction. Therefore, interest on Inventory Funding post-OC cannot be capitalized into inventory WIP and must be expensed directly to the P&L.

Question 4: Section 36(1)(iii) Income Tax Shield

A corporate developer borrowing ₹50 Crores under an Inventory Overdraft line at 12.00% p.a. is subject to an effective corporate tax rate of 25.168% (under Section 115BAA of the Income Tax Act, 1961). What is the developer's effective post-tax borrowing yield? * A) 12.00% p.a. * B) 8.98% p.a. * C) 9.48% p.a. * D) 6.00% p.a.

Correct Answer: B) 8.98% p.a. *Rationale:* Under Section 36(1)(iii), interest paid on capital borrowed for business purposes is a tax-deductible expense.

$$\text{extEffectivePost}-\text{TaxYield} = 12.00\% \text{imes} 1 - 0.25168 = 12.00\% \text{imes} 0.74832 = 8.98\% \text{extp.a.}$$

Question 5: RERA Statutory Compliance on Completed Units

Which of the following statements regarding GST applicability on completed unsold units pledged as collateral for Inventory Funding is CORRECT under Indian tax law? * A) Completed units with an Occupancy Certificate (OC) attract 5% GST without Input Tax Credit (ITC). * B) Completed units with an Occupancy Certificate (OC) are exempt from GST under Schedule III of the CGST Act, 2017. * C) Completed units attract 12% GST if mortgaged to a Scheduled Commercial Bank. * D) Completed units attract 18% GST under the Reverse Charge Mechanism (RCM).

Correct Answer: B) Completed units with an Occupancy Certificate (OC) are exempt from GST under Schedule III of the CGST Act, 2017. *Rationale:* Under Schedule III of the CGST Act, 2017, the sale of building stock where the Occupancy Certificate (OC) has been issued prior to sale is classified as neither a supply of goods nor a supply of services, rendering ready-to-move-in units completely exempt from GST.

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Question 6: Statutory Mortgage Registration Mandate

To perfect a valid mortgage security over completed unsold units pledged by a private limited developer company, the lender must ensure charge registration on the ROC portal within 30 days under which section of the Companies Act, 2013? * A) Section 180(1)(c) * B) Section 77 * C) Section 138 * D) Section 186

Correct Answer: B) Section 77 *Rationale:* Section 77 of the Companies Act, 2013 mandates that every company creating a charge on its property or assets (whether tangible or intangible) must register the particulars of the charge with the Registrar of Companies (ROC) using Form CHG-1 within 30 days of creation.

Question 7: RBI IRACP "Out of Order" Classification

An Inventory Overdraft facility with a sanctioned Drawing Power of ₹20 Crores has an outstanding balance of ₹22 Crores continuously for 90 days. Under RBI IRACP norms, how should the bank classify this facility? * A) Special Mention Account 0 (SMA-0) * B) Standard Restructured Asset * C) Non-Performing Asset (NPA - Substandard) * D) Written-off Loss Asset

Correct Answer: C) Non-Performing Asset (NPA - Substandard) *Rationale:* Under RBI Prudential Norms on Income Recognition, Asset Classification and Provisioning (IRACP), a revolving overdraft facility is deemed "Out of Order" and classified as NPA if the outstanding balance remains continuously in excess of the sanctioned Drawing Power (DP) for a period of 90 days.

Question 8: Net Cash Flow Cover Ratio (NCFCR) Threshold

When underwriting an Inventory Funding line against ₹100 Crores of appraised GDV, the lender calculates that total expected net sales receivables over 3 years equal ₹80 Crores, while total debt service (principal + interest) equals ₹40 Crores. What is the calculated Net Cash Flow Cover Ratio (NCFCR), and does it satisfy the institutional benchmark? * A) NCFCR = 1.20x; Fails benchmark. * B) NCFCR = 2.00x; Exceeds minimum $1.50x$ benchmark. * C) NCFCR = 0.50x; Fails benchmark. * D) NCFCR = 2.50x; Exceeds minimum $1.50x$ benchmark.

Correct Answer: B) NCFCR = 2.00x; Exceeds minimum 1.50x benchmark. *Rationale:*

extNCFCR=racextExpectedSalesReceivablesextTotalDebtServiceOutflow=rac₹80extCrores₹40extCrores=2.00

Since $2.00x \geq 1.50x$, it comfortably satisfies the institutional underwriting threshold.

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Question 9: Escrow Cash Flow Sweep Mechanics

Under a 110% Partial NOC Release Cover Rate, if a developer sells a pledged apartment for ₹2.00 Crores (where the allocated debt is ₹1.00 Crore), how much money is retained by the lender for debt reduction, and how much flows to the developer's 30% Free Surplus Escrow Account? * A) Lender retains ₹1.00 Crore; Developer receives ₹1.00 Crore. * B) Lender retains ₹1.10 Crores; Developer receives ₹0.90 Crores. * C) Lender retains ₹2.00 Crores; Developer receives ₹0.00. * D) Lender retains ₹0.00; Developer receives ₹2.00 Crores.

Correct Answer: B) Lender retains ₹1.10 Crores; Developer receives ₹0.90 Crores. *Rationale:*

extLenderEscrowSweep110%Cover=₹1.00extCroreAllocatedDebtimes110%=₹1.10extCrores

extFreeSurplusReleasedtoDeveloper=₹2.00extCroresGrossSale−₹1.10extCroresSweep=₹0.90ext Crores₹90.00Lakhs

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Question 10: Legal Enforcement under SARFAESI Act, 2002

Following a default by a developer on an Inventory Funding facility, the lender issues a 60-day Demand Notice under Section 13(2) of the SARFAESI Act, 2002. If the developer fails to pay, under which section of SARFAESI does the lender apply to the District Magistrate / CMM to obtain physical possession of the pledged completed units? * A) Section 13(4) * B) Section 14 * C) Section 19 * D) Section 31

Correct Answer: B) Section 14 *Rationale:* Section 14 of the SARFAESI Act, 2002 empowers secured creditors to submit an affidavit to the Chief Metropolitan Magistrate (CMM) or District Magistrate (DM) within whose jurisdiction the mortgaged property is located, requesting administrative assistance to take physical possession of the secured asset and hand it over to the lender for public auction.

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